

HOUSE No. 659

The Commonwealth of Massachusetts

PRESENTED BY:

Kelly W. Pease

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to equity and inclusion in education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kelly W. Pease</i>	<i>4th Hampden</i>	<i>1/6/2025</i>

HOUSE No. 659

By Representative Pease of Westfield, a petition (accompanied by bill, House, No. 659) of Kelly W. Pease relative to equity and inclusion in education. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to equity and inclusion in education.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1 of Chapter 69 of the General laws, as appearing in the 2020 Official Edition, is
2 hereby amended by striking out item (4) and inserting in place thereof the following words,
3 effective July 1, 2023:

4 “(4) an effective mechanism in the form of a computer-adaptive assessment with a high
5 enough ceiling and low enough floor to monitor the actual progress of individual students’
6 mastery through the various K-12 learning standards in English, Mathematics, Science and
7 Social Studies; which mechanism seeks to identify, on an annual basis, the learning standards
8 students likely have already mastered and those which they haven’t, for the purposes of
9 identifying all students’ authentic growth, ensuring their continuous progress through those
10 learning standards, identifying directly the actual level of each student’s learning readiness in the
11 public classrooms of the Commonwealth, and of holding educators more accurately and fairly
12 accountable through such authentic measure of students’ achievement and growth.”

Section 1B of Chapter 69 of the General Laws as appearing in the 2020 Official Edition is hereby amended by inserting the following paragraphs after the first paragraph:

For the purposes of this section the term “school age child” shall mean every child between the minimum age established by regulations created pursuant to chapter 76 section 1 and through age 21, who has not attained a high school diploma or its equivalent, and those who are age 19 or below on July 1 of any year, if they have attained a high school diploma.

The board of elementary and secondary education shall establish regulations, to become effective no later than July 1, 2023, to establish an education system that will engage each school age child in learning at a level commensurate with their prior demonstrated achievement, and at a pace which is suitable for each, within the K-12 education program in all public schools in the Commonwealth.

The board of elementary and secondary education, by July 1, 2025, shall develop or procure and distribute to districts, formative and computer-adaptive interim assessments to measure each of the K-12 learning standards; and shall expand the state-wide student-level information data system to include individual student data from those assessments, along with the data from the annual summative accountability assessment.

The board of elementary and secondary education shall ensure that all assessment data collected on children is analyzed to determine, for each, the appropriate level of instruction in each of the content areas, and that the Department will deliver the results to schools.

Section 1I of Chapter 69 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by replacing the fourth sentence of the second paragraph with the following sentence, effective July 1, 2023:

35 “Such instruments shall be criterion-referenced and flexible enough to assess which
36 levels of the various academic standards described in this chapter students are meeting.”

37 Section 5 of Chapter 76 of the General Laws, as appearing in the 2020 Official Edition, is
38 hereby amended by inserting at the end thereof, the following sentence:

39 “No person admitted to any public school shall be discriminated against in obtaining the
40 advantages, privileges and courses of study of such public school on account of age.”